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| 17/871,071 | 07/22/2022 | Alain FAVIER | 9585 | 1033 |

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BREINER & BREINER, L.L.C.
115 NORTH HENRY STREET
ALEXANDRIA, VA 22314

| EXAMINER | |
|---|---|
| KING, CURTIS J | |

| ART UNIT | PAPER NUMBER |
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**Please find below and/or attached an Office communication concerning this application or proceeding.**

The time period for reply, if any, is set in the attached communication.

| Office Action Summary | Application No. 17/871,071 | Applicant(s) FAVIER, Alain | |
|---|---|---|---|
| | Examiner CURTIS J KING | Art Unit 2685 | AIA (FITF) Status Yes |

*-- The MAILING DATE of this communication appears on the cover sheet with the correspondence address --*

**Period for Reply**

A SHORTENED STATUTORY PERIOD FOR REPLY IS SET TO EXPIRE 3 MONTHS FROM THE MAILING DATE OF THIS COMMUNICATION.

- Extensions of time may be available under the provisions of 37 CFR 1.136(a). In no event, however, may a reply be timely filed after SIX (6) MONTHS from the mailing date of this communication.
- If NO period for reply is specified above, the maximum statutory period will apply and will expire SIX (6) MONTHS from the mailing date of this communication.
- Failure to reply within the set or extended period for reply will, by statute, cause the application to become ABANDONED (35 U.S.C. § 133). Any reply received by the Office later than three months after the mailing date of this communication, even if timely filed, may reduce any earned patent term adjustment. See 37 CFR 1.704(b).

**Status**

1)☑ Responsive to communication(s) filed on 22 July 2022.

☐ A declaration(s)/affidavit(s) under **37 CFR 1.130(b)** was/were filed on _____.

2a)☐ This action is **FINAL.** 2b) ☑ This action is non-final.

3)☐ An election was made by the applicant in response to a restriction requirement set forth during the interview on _____; the restriction requirement and election have been incorporated into this action.

4)☐ Since this application is in condition for allowance except for formal matters, prosecution as to the merits is closed in accordance with the practice under *Ex parte Quayle*, 1935 C.D. 11, 453 O.G. 213.

**Disposition of Claims***

5) ☑ Claim(s) 1-16 and 32-39 is/are pending in the application.

5a) Of the above claim(s) _____ is/are withdrawn from consideration.

6) ☐ Claim(s) _____ is/are allowed.

7) ☑ Claim(s) 1-2,5-16 and 32-39 is/are rejected.

8) ☐ Claim(s) _____ is/are objected to.

9) ☐ Claim(s) _____ are subject to restriction and/or election requirement

* If any claims have been determined allowable, you may be eligible to benefit from the **Patent Prosecution Highway** program at a participating intellectual property office for the corresponding application. For more information, please see http://www.uspto.gov/patents/init_events/pph/index.jsp or send an inquiry to **PPHfeedback@uspto.gov.**

**Application Papers**

10)☐ The specification is objected to by the Examiner.

11)☑ The drawing(s) filed on 22 July 2022 is/are: a)☑ accepted or b)☐ objected to by the Examiner.

Applicant may not request that any objection to the drawing(s) be held in abeyance. See 37 CFR 1.85(a).

Replacement drawing sheet(s) including the correction is required if the drawing(s) is objected to. See 37 CFR 1.121(d).

**Priority under 35 U.S.C. § 119**

12)☐ Acknowledgment is made of a claim for foreign priority under 35 U.S.C. § 119(a)-(d) or (f).

**Certified copies:**

a)☐ All b)☐ Some** c)☐ None of the:

1.☐ Certified copies of the priority documents have been received.

2.☐ Certified copies of the priority documents have been received in Application No. _____.

3.☐ Copies of the certified copies of the priority documents have been received in this National Stage application from the International Bureau (PCT Rule 17.2(a)).

** See the attached detailed Office action for a list of the certified copies not received.

**Attachment(s)**

1) ☑ Notice of References Cited (PTO-892)

2) ☑ Information Disclosure Statement(s) (PTO/SB/08a and/or PTO/SB/08b) Paper No(s)/Mail Date _____.

3) ☑ Interview Summary (PTO-413) Paper No(s)/Mail Date _____.

4) ☐ Other: _____.

## DETAILED ACTION

### *Notice of Pre-AIA or AIA Status*

1. The present application, filed on or after March 16, 2013, is being examined under the first inventor to file provisions of the AIA.

### *Election/Restrictions*

2. Applicant's election without traverse of claims 1-16 and 32-39 in the reply filed on 12/23/2024 is acknowledged.

### *Claim Rejections - 35 USC § 103*

3. In the event the determination of the status of the application as subject to AIA 35 U.S.C. 102 and 103 (or as subject to pre-AIA 35 U.S.C. 102 and 103) is incorrect, any correction of the statutory basis (i.e., changing from AIA to pre-AIA) for the rejection will not be considered a new ground of rejection if the prior art relied upon, and the rationale supporting the rejection, would be the same under either status.

4. The following is a quotation of 35 U.S.C. 103 which forms the basis for all obviousness rejections set forth in this Office action:

> A patent for a claimed invention may not be obtained, notwithstanding that the claimed invention is not identically disclosed as set forth in section 102, if the differences between the claimed invention and the prior art are such that the claimed invention as a whole would have been obvious before the effective filing date of the claimed invention to a person having ordinary skill in the art to which the claimed invention pertains. Patentability shall not be negated by the manner in which the invention was made.

5. Claims 1-2, 5-7, 12-16, 32-33, 35 and 39 are rejected under 35 U.S.C. 103 as being unpatentable over Luo (Pub. No.: 2014/0104061 A1) in view of Zhang (Pub. No.: 2018/0082555 A1).

1) In regard to claim 1, Luo discloses the claimed disposable security device keeper with no locking mechanism ("Keeper") (fig. 2: 132 discloses as a security tag) comprising:

a rigid or semirigid casing that substantially corresponds to the shape of a product and adapted to cover at least a portion of one side of the product but not fully enclosing the product (fig. 2 shows the security tag is rigid and has a shape of the back of the shoe 102 and covers the back portion of the shoe);

a security element or a non-EAS label attached to the casing and adapted to be inaccessible to a consumer when the Keeper is attached to the product (¶0044 discloses as a sensor); and

a flexible support attached to the casing and adapted to wrap around the product or a two-sided support extending around the perimeter of the casing, one side of the two-sided support attached to the casing and the second side of the two-sided support adapted to attach to the product to secure the Keeper to the product (fig. 2).

Luo does not explicitly disclose adhesive is used.

However, Zhang discloses it has been known to use adhesive to attach a support to a casing (¶0096).

Therefore, it would have been obvious to one of ordinary skill in the art at the time the claimed invention was filed to allow the device of Luo to be secured to the casing using an adhesive, as taught by Zhang.

One skilled in the art would be motivated to modify Luo as described above in order to use an alternative attaching means for securing the security device to the casing.

2) In regard to claim 2 (dependent on claim 1), Luo and Zhang further disclose the Keeper of claim 1.

Luo and Zhang does not explicitly disclose wherein the flexible adhesive support comprises a transparent tape with a permanent glue and a peel-off backing material.

However, official notice is taken by the examiner that both the concept and advantage is known for a Keeper to have a transparent tape with a permanent glue and a peel-off backing material.

Therefore, it would have been obvious to one of ordinary skill in the art at the time the claimed invention was filed to modify the Keeper of Luo to utilize a transparent tape with a peel-off backing material.

One skilled in the art would be motivated to modify Luo as described above in order to use an alternative technique for attaching the Keeper to the product.

3) In regard to claim 5 (dependent on claim 1), Luo and Zhang further disclose the Keeper of claim 1 wherein the casing includes a top wall, a bottom wall, a first side wall and a second side wall forming an open frame, the casing adapted to fit around the perimeter of the product (Luo fig. 2).

4) In regard to claim 6 (dependent on claim 5), Luo and Zhang further disclose the Keeper of claim 5 wherein the first side wall includes at least one clip for attaching the casing to the product and adapted to facilitate the wrapping of the flexible adhesive support and the second side wall includes at least one clip for attaching the casing to the product and adapted to facilitate the wrapping of the flexible adhesive support (Luo ¶0042-¶0043).

5) In regard to claim 7 (dependent on claim 6), Luo and Zhang further disclose the Keeper of claim 6 wherein the first side wall includes two clips and the second side wall includes two clips (Luo ¶0042-¶0043).

6) In regard to claim 12 (dependent on claim 1), Luo and Zhang further disclose the Keeper of claim 1 wherein the Keeper shape is selected from the group consisting of rectangular, square and oval (Luo fig. 2).

7) In regard to claim 13 (dependent on claim 1), Luo and Zhang further disclose the Keeper of claim 1 wherein the security element is selected from the group consisting of an EAS label, an antenna, an RFID element and antenna and a combination of an EAS label and an RFID element (Luo ¶0052).

8) In regard to claim 14 (dependent on claim 1), Luo and Zhang further disclose the Keeper of claim 1.

Luo and Zhang do not explicitly disclose the flexible adhesive support includes a transparent tape having an opaque section adapted to mask an information section of a product which is not intended to be used with the Keeper.

However, official notice is taken by the examiner that both the concept and advantage is known for a Keeper to have a transparent tape having an opaque section to cover information.

Therefore, it would have been obvious to one of ordinary skill in the art at the time the claimed invention was filed to allow the Keeper of Luo to have a transparent tape.

One skilled in the art would be motivated to modify Luo as described above in order to allow the securing device to still preview information regarding the product.

9) In regard to claim 15 (dependent on claim 1), Luo and Zhang further disclose the Keeper of claim 1.

Luo and Zhang do not explicitly disclose the non-EAS label includes a deterrent message.

However, official notice is taken by the examiner that both the concept and advantage is known for a Keeper to have a deterrent message.

Therefore, it would have been obvious to one of ordinary skill in the art at the time the claimed invention was filed to allow the label to have a deterrent message.

One skilled in the art would be motivated to modify Luo as described above in order to warn individuals of the anti-theft means, thereby, reducing the likelihood the product will be stolen.

10) In regard to claim 16 (dependent on claim 1), Luo and Zhang further disclose the Keeper of claim 1.

Luo and Zhang do not explicitly disclose the flexible adhesive support includes a preprinted message.

However, official notice is taken by the examiner that both the concept and advantage is known for the Keeper to have a preprinted message.

Therefore, it would have been obvious to one of ordinary skill in the art at the time the claimed invention was filed to allow the Keeper of Luo to have a preprinted message.

One skilled in the art would be motivated to modify Luo as described above in order to provide an indication to a user.

11) In regard to claim 32, claim 32 is rejected and analyzed with respect to claim 1 and the references applied.

12) In regard to claim 33 (dependent on claim 32), claim x is rejected and analyzed with respect to claim 2 and the references applied.

13) In regard to claim 35 (dependent on claim 34), claim 35 is rejected and analyzed with respect to claim 6 and the references applied.

14) In regard to claim 39 (dependent on claim 38), claim 39 is rejected and analyzed with respect to claim 13 and the references applied.

6. Claims 8-11, 34 and 36-38 are rejected under 35 U.S.C. 103 as being unpatentable over Luo (Pub. No.: 2014/0104061 A1) in view of Zhang (Pub. No.: 2018/0082555 A1) and further in view of Kaiserman (Pub. No.: 2017/0036838 A1) .

1) In regard to claim 8 (dependent on claim 1), Luo and Zhang disclose the Keeper of claim 1.

Luo and Zhang does not explicitly disclose the casing further includes an upward extending support having a peg-hole.

However, Kaiserman discloses it has been known for a keeper device to be supported by a peg-hole (fig. 3: 11).

Therefore, it would have been obvious to one of ordinary skill in the art at the time the claimed invention was filed to allow the Keeper of Luo to have a peg-hole, as taught by Kaiserman.

One skilled in the art would be motivated to modify Luo as described above in order to provide a portion of the Keeper which can be supported by a store rack/holder.

2) In regard to claim 10 (dependent on claim 8), Luo, Zhang and Kaiserman further disclose the Keeper of claim 8 wherein the upwardly extending support is adapted to fit on top or through a peg-hole on the product and to prevent tearing of the product peg-hole (Kaiserman fig. 3).

3) In regard to claim 9 (dependent on claim 5), Luo and Zhang disclose the Keeper of claim 5.

Luo and Zhang do not explicitly disclose the casing further includes an upward extending support having a peg-hole.

However, Kaiserman discloses it has been known for a keeper device to be supported by a peg-hole (fig. 3: 11).

Therefore, it would have been obvious to one of ordinary skill in the art at the time the claimed invention was filed to allow the Keeper of Luo to have a peg-hole, as taught by Kaiserman.

One skilled in the art would be motivated to modify Luo as described above in order to provide a portion of the Keeper which can be supported by a store rack/holder.

4) In regard to claim 11 (dependent on claim 9), Luo, Zhang and Kaiserman further disclose the Keeper of claim 9 wherein at least one of said walls of said Keeper includes one or more apertures (Kaiserman fig. 3: 12).

5) In regard to claim 34 (dependent on claim 33), claim 34 is rejected and analyzed with respect to claim 8 and the references applied.

6) In regard to claim 36 (dependent on claim 35), claim 36 is rejected and analyzed with respect to claim 10 and the references applied.

7) In regard to claim 37 (dependent on claim 36), claim 37 is rejected and analyzed with respect to claim 11 and the references applied.

8) In regard to claim 38 (dependent on claim 37), claim 38 is rejected and analyzed with respect to claim 12 and the references applied.

### *Allowable Subject Matter*

7. Claims 3-4 are objected to as being dependent upon a rejected base claim, but would be allowable if rewritten in independent form including all of the limitations of the base claim and any intervening claims.

### *Conclusion*

8. Any inquiry concerning this communication or earlier communications from the examiner should be directed to CURTIS J KING whose telephone number is (571)270-5160. The examiner can normally be reached Mon-Fri 6:00 - 2:00 EST.

Examiner interviews are available via telephone, in-person, and video conferencing using a USPTO supplied web-based collaboration tool. To schedule an interview, applicant is encouraged to use the USPTO Automated Interview Request (AIR) at http://www.uspto.gov/interviewpractice.

If attempts to reach the examiner by telephone are unsuccessful, the examiner's supervisor, Quan-Zhen Wang can be reached on 571-272-3114. The fax phone number for the organization where this application or proceeding is assigned is 571-273-8300.

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/CURTIS J KING/
Primary Examiner, Art Unit 2685